IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-4
CA (CAA) No. - 54/230/232/ND/2021

IN THE MATTER OF:
Asthluxmi Mercantile Pvt Ltd And Green Woodcrafts Pvt Ltd ....**Applicant**

SECTION
U/s 230-232 **Order delivered on 12.11.2021**

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

In course of hearing, we notice that the registered office of the Transferor Company is situated within the Territorial Jurisdiction of NCLT, Calcutta Bench and the Ld. Counsel appearing for the petitioner submits that for the Transferor Company, he has already filed an application before the NCLT, Calcutta Bench. But from the prayer portion of the petition, we notice that the petitioner in this application has also prayed for the dispensation of the holding of meeting of the equity shareholders of the Transferor Company. Therefore, the petitioner is well advised to make necessary amendments in the application and confine their prayers only in respect of the Transferee Company which is within the jurisdiction of this Bench.

On the request of the petitioner's counsel, 3 days' time is granted to file appropriate application for necessary amendment in the prayer portion of the application. List the matter on **23.11.2021.**

Sd/-
(AVINASH K. SRIVASTAVA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Chirag